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LEGISLATING REFORM?

Law and Conflict in Myanmar

Melissa Crouch

What is the relationship between law and conflict? In particular, what role does law-making play in avoiding, managing, or exacerbating conflict? This chapter considers these issues in the context of Myanmar. Legal reform often occurs at moments of political conflict, crisis, and change, and this is also the case in Myanmar. Law reform may be undertaken for a range of reasons — to update, amend, or replace existing laws, to introduce a new policy, or to set a strategic direction in a particular area of reform.

Underneath these efforts at law reform in transitional contexts such as Myanmar there are often two implicit assumptions at play. First, it is sometimes assumed that law has not played an important role in Myanmar in the past. Second, it is assumed that in the post-2011 political transition era, law can and will make a more important contribution to the reform process. At the core of these assumptions is the idea that law helps, rather than hinders, conflict. I suggest that the relationship between law and conflict is more complex, and this is illustrated in the case of Myanmar.